

SAMPLE - Horse Sale and Purchase Agreement (test render, 2026-08-02)

1. PARTIES

1.1 This Horse Sale and Purchase Agreement (the "Agreement") is made effective as of August 2, 2026 by and between ZZTest Seller of ("Seller") and ZZTest Buyer of ("Buyer").

1.2 Co-Buyer

ZZTest Cobuyer of 3 Paddock Place, San Diego, CA 92103 ("Co-Buyer") purchases the Horse jointly with Buyer. Co-Buyer is a Buyer for all purposes of this Agreement, every reference to Buyer includes Co-Buyer, and the representations, covenants, releases, waivers, and payment obligations of Buyer under this Agreement are made by Buyer and Co-Buyer jointly and severally. Buyer and Co-Buyer shall hold title to the Horse as follows: Joint tenants with right of survivorship. This Agreement is effective as to Co-Buyer upon Co-Buyer's execution of it.

2. DEFINITIONS; BINDING EFFECT; THIRD-PARTY BENEFICIARIES

2.1 "Seller Parties" means Seller; Seller's spouse and family and household members, in each case when handling, caring for, transporting, or otherwise involved with the Horse or the activities contemplated by this Agreement; and Seller's estate, executors, administrators, legal representatives, successors, and assigns.

2.2 "Buyer Parties" means Buyer; Buyer's spouse and family and household members, in each case when handling, caring for, transporting, riding, or otherwise involved with the Horse or the activities contemplated by this Agreement; and Buyer's estate, executors, administrators, legal representatives, successors, and assigns.

2.3 "Closing" means the moment at which both of the following have occurred: Seller's receipt of the Purchase Price in full (or, where installment payment applies, receipt of all amounts due at transfer under the installment terms), and delivery of the Horse to Buyer as provided in this Agreement.

2.4 Each release, waiver, assumption of risk, and covenant made by a party under this Agreement is made by that party on its own behalf and, to the fullest extent permitted by law, binds anyone claiming by, through, or under that party, including that party's estate, executors, administrators, heirs, legal representatives, successors, assigns, insurers, and subrogees. Each party covenants that it will not permit any person who has not executed this Agreement or a release approved by the other party to ride, handle, or care for the Horse prior to Closing, and each party shall indemnify, defend, and hold harmless the other party's Seller Parties or Buyer Parties, as applicable, from and against any claim brought by that party's family members, invitees, or authorized riders arising out of the Horse or the activities contemplated by this Agreement, except to the extent caused by the gross negligence, reckless conduct, or intentional misconduct of an indemnified party.

2.5 Each Seller Party and each Buyer Party who is not a signatory to this Agreement is an intended third-party beneficiary of the releases, waivers, assumptions of risk, indemnities, and limitations of liability in this Agreement and may enforce them directly.

3. THE HORSE

3.1 Horse

This Agreement applies to the following horse (the "Horse"): ZZ Test Goldmark

Barn Name: Goldie

Color: Bay

Breed: Selle Francais

Sex: Gelding

3.2 Title and Ownership

Seller warrants that Seller lawfully owns the Horse, holds good and marketable title to the Horse, free and clear of all liens, security interests, leases, breeding contracts, co-ownership interests, and encumbrances except as expressly disclosed in this Agreement, and has all requisite rights, authority, and (where there are co-owners) permission to enter into this Agreement and sell the Horse.

3.3 Behavior

Seller warrants that, to Seller's knowledge, the Horse has no history of dangerous or vicious behavior as of the Effective Date of this Agreement, except as disclosed in this Agreement.

3.4 Health and Condition Disclosures

Seller has disclosed to Buyer all known material information regarding the Horse's medical conditions, injuries, lameness history, surgeries, allergies, current and past medications, behavioral issues, vices, and prior veterinary concerns, as follows: Mild seasonal allergies, managed with antihistamines.. Seller warrants that these disclosures are true and complete to Seller's knowledge as of the Effective Date, and shall promptly disclose any material change arising before Closing.

3.5 No Serious Injury History

Seller represents that, to Seller's knowledge, no person has suffered serious injury proximately caused by the direct actions of the Horse, including biting, kicking, striking, bucking, rearing, bolting, crushing, or throwing a rider. This representation does not extend to any incident caused primarily by a third party or an external stimulus - such as another horse or rider being at fault, a loose dog, wildlife, a vehicle, or a similar external provocation - where the Horse's reaction was within the range of normal equine behavior.

3.6 Breeding Warranty Not Elected

No warranty of breeding soundness, fertility, or reproductive capacity is given or implied. The parties considered including a breeding warranty and both elected not to include one.

3.7 Disclaimer of Warranties

Except for the representations and warranties expressly stated in this Agreement, the Horse is sold AS IS, and SELLER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, REGARDING THE HORSE, INCLUDING THE WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, and no warranty is made regarding the Horse's future soundness, health, temperament, performance, suitability for any discipline or rider, or value. This disclaimer does not limit Buyer's rights arising from the express representations in this Agreement or from fraud.

4. PURPOSE AND SALE

4.1 Purpose of Agreement

Seller owns the horse described in this Agreement and desires to sell it, and Buyer desires to purchase it, on the terms and conditions of this Agreement.

4.2 Agreement to Sell and Purchase

Subject to the terms and conditions of this Agreement, Seller agrees to sell, transfer, and convey the Horse to Buyer, and Buyer agrees to purchase the Horse from Seller, for the Purchase Price and on the terms stated in this Agreement.

5. PURCHASE PRICE AND PAYMENT

5.1 Purchase Price

The purchase price for the Horse is \$25,000.00 (the "Purchase Price").

5.2 Deposit

Buyer shall pay a deposit of \$2,500.00 (the "Deposit") upon execution of this Agreement. The Deposit is applied against the Purchase Price at Closing. If this Agreement terminates because a condition precedent stated in this Agreement fails (including an unsatisfactory pre-purchase examination where the sale is contingent on one, a financing contingency that fails where one is included, or a trial period return in accordance with this Agreement), the Deposit is refunded to Buyer in full within 5 business days. If Buyer fails to complete the purchase for any other reason, the parties agree that Seller's actual damages would be impracticable or extremely difficult to determine, that the Deposit is a reasonable estimate of those damages, and that Seller may retain the Deposit as liquidated damages as Seller's sole monetary remedy for that failure.

5.3 Payment Method

The Purchase Price shall be paid by the following method(s): Zelle. Payment is not received until funds are actually and irrevocably credited to Seller.

5.4 Payment in Full at Transfer

The Purchase Price, less any Deposit already paid, is due in full at or before delivery of the Horse. Seller is not obligated to deliver the Horse or any registration or transfer documents until the Purchase Price is received in full.

5.5 Financing Contingency Not Elected

This sale is not contingent on Buyer obtaining financing. The parties considered including a financing contingency and both elected not to include one.

5.6 Taxes

Any sales, use, or similar transfer tax arising from this sale is the responsibility of Buyer. Each party is otherwise responsible for its own tax obligations arising from this transaction.

6. PRE-PURCHASE EXAMINATION

6.1 Pre-Purchase Examination

Buyer may, at Buyer's sole cost, have the Horse examined by a licensed veterinarian of Buyer's choosing on or before August 20, 2026. Seller shall make the Horse reasonably available for the examination and shall disclose the Horse's known medical history to the examining veterinarian on request.

6.2 Sale Contingent on Examination

This sale is contingent on a pre-purchase examination whose results are satisfactory to Buyer in Buyer's reasonable discretion. If Buyer gives Seller written notice on or before August 20, 2026 that the examination results are not satisfactory, this Agreement terminates, the Deposit (if any) is refunded in full, and neither party has further obligation to the other except obligations that expressly survive. If Buyer gives no such notice by that date, this contingency is deemed waived.

6.3 Drug and Substance Testing Not Elected

Buyer was offered the opportunity to have samples drawn from the Horse and tested for prohibited, masking, or performance- or behavior-altering substances, and the parties elected not to include drug testing. Buyer assumes the risk that the Horse's condition or behavior at examination, trial, or delivery may have been affected by a substance present at that time.

7. TRIAL PERIOD

7.1 No trial period applies to this sale.

8. TITLE, DELIVERY, AND RISK OF LOSS

8.1 Delivery

The Horse shall be delivered to Buyer at FHE main barn, San Diego, CA on or about September 1, 2026. Transport is arranged by Buyer and paid for by Buyer. If Buyer fails to take delivery within 7 days of the agreed date other than due to Seller's delay, Buyer shall pay board and care for the Horse at \$75.00 per day until delivery occurs, and risk of loss passes to Buyer on the 8th day.

8.2 Transfer of Title and Risk

Except as otherwise provided in the Installment Terms, title to the Horse passes to Buyer at Closing, and risk of loss of or injury to the Horse passes to Buyer upon delivery. Upon Closing, this executed Agreement, together with the executed Bill of Sale, constitutes the instruments of transfer for the Horse, and Seller shall execute any additional transfer document reasonably required by a breed registry, microchip registry, or passport authority.

8.3 Registration and Transfer Documents

At Closing (or, where installment payment applies, upon payment in full), Seller shall deliver to Buyer the Horse's registration papers, passport, and any transfer forms required to record the change of ownership, executed by Seller where signature is required. Each party shall cooperate to complete breed registry, microchip registry, and passport transfers promptly, with recording fees paid by Buyer.

8.4 No-Slaughter Covenant

Buyer covenants that Buyer will not sell, transfer, consign, or deliver the Horse, directly or through intermediaries, for

slaughter or for human consumption, whether within or outside California, and will not sell or transfer the Horse at auction without commercially reasonable steps to ensure the Horse is not being acquired for slaughter. The parties acknowledge that California Penal Code Section 598c makes it unlawful to possess, import, export, sell, or transfer a horse with the intent that it be killed for human consumption. This covenant survives Closing and binds Buyer's successors in interest to the extent permitted by law.

9. RISK, RELEASE, AND INDEMNIFICATION

9.1 Assumption of Inherent Risks

Each party understands that horseback riding and handling horses are inherently dangerous activities, and that horses are unpredictable by nature and may buck, rear, bite, kick, spook, stumble, or otherwise react unpredictably to their environment, which can result in severe injury, paralysis, or death. In connection with any examination, trial, handling, riding, transport, or delivery of the Horse under this Agreement, each party, on behalf of itself and anyone claiming by, through, or under it, expressly and voluntarily assumes all inherent risks of equine activities, and acknowledges that the other party's Seller Parties or Buyer Parties, as applicable, owe no duty to protect it from those inherent risks.

9.2 Release by Buyer

Buyer, on behalf of Buyer and anyone claiming by, through, or under Buyer, completely releases, forever discharges, and agrees to hold harmless the Seller Parties, to the fullest extent permitted by law, from any and all claims, demands, causes of action, liabilities, or damages for personal injury, property damage, or wrongful death arising out of Buyer's examination, trial, handling, riding, or transport of the Horse before Closing, whether caused by the ordinary negligence of any Seller Party or otherwise, and from any and all claims arising after Closing relating to the Horse's condition, soundness, behavior, suitability, or value. This release does not apply to gross negligence, reckless conduct, intentional misconduct, fraud, or breach of the express representations and warranties stated in this Agreement.

9.3 Release by Seller

Seller, on behalf of Seller and anyone claiming by, through, or under Seller, completely releases, forever discharges, and agrees to hold harmless the Buyer Parties, to the fullest extent permitted by law, from any and all claims, demands, causes of action, liabilities, or damages for personal injury, property damage, or wrongful death arising out of Seller's riding or handling of the Horse or Seller's presence at any facility where the Horse is kept in connection with this Agreement, whether caused by the ordinary negligence of any Buyer Party or otherwise. This release does not apply to gross negligence, reckless conduct, intentional misconduct, or fraud.

9.4 Waiver of Unknown Claims

Each party, on behalf of itself and anyone claiming by, through, or under it, expressly waives any and all claims released under this Agreement that the waiving party does not know or suspect to exist in its favor at the time of this Agreement. Each party acknowledges that it is familiar with, and expressly waives the protections of, California Civil Code Section 1542, which provides: "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party." Each party assumes the risk that claims presently unknown to it may later be discovered, and acknowledges that this waiver is a material term of this Agreement. This waiver does not apply to claims arising from fraud or from breach of the express representations and warranties stated in this Agreement.

9.5 Post-Closing Responsibility

From and after Closing, the Horse and its actions, behavior, care, and condition are the sole responsibility of Buyer, and Buyer shall indemnify, defend, and hold harmless the Seller Parties from and against any claim, damage, loss, liability, cost, or expense arising out of the Horse or its use, handling, care, or possession after Closing, except to the extent caused by the gross negligence, reckless conduct, intentional misconduct, or fraud of a Seller Party or by breach of the express representations and warranties stated in this Agreement.

9.6 Pre-Closing Responsibility

Before Closing, and except as allocated to Buyer during any trial period, Seller shall indemnify, defend, and hold harmless

the Buyer Parties from and against any third-party claim arising out of the Horse's ownership, care, or condition, except to the extent caused by the gross negligence, reckless conduct, or intentional misconduct of a Buyer Party.

10. DEFAULT AND REMEDIES

10.1 Default and Cure

A party in material breach of this Agreement has 10 days after written notice of the breach to cure it, except that no cure period applies to Buyer's failure to complete the purchase after all conditions precedent are satisfied or waived, which is governed by the Deposit clause where a Deposit applies.

10.2 Seller Default

If Seller fails to complete the sale after all conditions precedent are satisfied or waived, Buyer is entitled to a full refund of the Deposit and all other amounts paid, and, because the Horse is unique, Buyer may alternatively seek specific performance of this Agreement.

11. NOTICE AND CONTACT INFORMATION

11.1 Form of Notice

Any notice required or permitted under this Agreement shall be in writing and delivered by a method that provides evidence of receipt to the party at the contact information below. Notice by email is not effective unless the receiving party acknowledges receipt.

11.2 Seller

Name: ZZTest Seller

Email: zz-test-seller@example.invalid

11.3 Buyer

Name: ZZTest Buyer

Email: zz-test-buyer@example.invalid

11.4 Changes in Contact Information

Each party shall promptly notify the other party in writing of any change in the party's address or contact information.

12. ASSIGNMENT

12.1 Assignment

Neither party shall assign this Agreement or any of its rights or obligations under it without the other party's prior written consent.

13. ENTIRE AGREEMENT

13.1 Entire Agreement

This Agreement contains the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions, advertisements, and understandings, and Buyer acknowledges that Buyer is not relying on any statement or representation regarding the Horse that is not stated in this Agreement. Any modification of this Agreement must be in writing and signed by all parties.

14. GOVERNING LAW AND DISPUTE RESOLUTION

14.1 Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of California, without regard to conflict-of-laws principles. Any dispute arising out of or relating to this Agreement or the Horse shall be resolved by final and binding arbitration in San Diego County, California, before a single arbitrator administered by JAMS under its applicable rules, or another administrator the parties agree to in writing, with arbitrator fees and administrative costs allocated as those rules provide. Either party may bring a qualifying claim in small claims court, and either party may seek provisional or injunctive relief, including recovery of possession of the Horse, in a court of competent jurisdiction without waiving arbitration. Judgment on the award may be entered in any court having jurisdiction.

15. ATTORNEYS' FEES

15.1 Attorneys' Fees

Each party shall cover their own attorney's fees and costs.

16. SEVERABILITY

16.1 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid or unenforceable provision shall be deemed modified to the minimum extent necessary to make it valid and enforceable.

17. REPRESENTATIONS

17.1 Seller's Representations

Seller represents and warrants that Seller has full authority to enter into this Agreement, that the warranties of title and the disclosures stated in this Agreement are true and complete to Seller's knowledge, and that Seller will promptly disclose any material change in the Horse's health, soundness, or behavior arising before Closing.

17.2 Buyer's Representations

Buyer represents and warrants that Buyer is at least 18 years of age and has full authority to enter into this Agreement; that Buyer has had the opportunity to inspect the Horse, to have the Horse examined by a veterinarian of Buyer's choosing, and to ask questions about the Horse; and that Buyer has the knowledge and experience to evaluate the Horse's suitability for Buyer's intended use. By signing this Agreement, Buyer acknowledges that Buyer has read this Agreement, fully understands its terms, and understands that Buyer is giving up substantial legal rights on behalf of Buyer and anyone claiming by, through, or under Buyer, including the right to sue the Seller Parties.

18. SIGNATURES

18.1 Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

BUYER

Signature: ZZTest Buyer

Printed Name: ZZTest Buyer

Date: August 2, 2026

18.2 CO-BUYER

Signature: ZZTest Cobuyer

Printed Name: ZZTest Cobuyer

Date: August 2, 2026

18.3 SELLER (OWNER)

Signature: ZZTest Seller

Printed Name: ZZTest Seller

Date: August 2, 2026